29 September 2024

IN THE UNITED STATES AIR FORCE
COURT OF CRIMINAL APPEALS

UNITED STATES,

Appellee,

v.

BRIAN D. HOWARD,
Airman, USAF
Appellant

Before Panel No. 1

No. ACM 40478 (f rev)

BRIEF ON BEHALF OF APPELLANT

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Assignments of Error

I.

WHETHER AIRMAN HOWARD'S DISOBEYING ORDERS AND DERELICTION OF DUTY CONVICTIONS ARE FACTUALLY INSUFFICIENT AND TWO OF HIS DERELICTION OF DUTY CONVICTIONS ARE LEGALLY INSUFFICIENT.

II.

WHETHER THE MILITARY JUDGE ERRED WHEN SHE REFUSED TO INSTRUCT ON LACK OF MENTAL RESPONSIBILITY.

III.

WHETHER THE MILITARY JUDGE ABUSED HER DISCRETION WHEN SHE DENIED CHALLENGES FOR CAUSE AGAINST TWO PANEL MEMBERS WHO QUESTIONED THE CENTRAL DEFENSE OF LACK OF MENTAL RESPONSIBILITY.

IV.

WHETHER THE RECORD OF TRIAL'S OMISSION OF COURT MEMBER SELECTION SHEETS REQUIRES RELIEF OR, AT A MINIMUM, REMAND FOR CORRECTION.

V.

WHETHER AIRMAN HOWARD IS ENTITLED TO SENTENCE RELIEF BECAUSE OF THE 223-DAY DELAY BETWEEN ANNOUNCEMENT OF THE SENTENCE AND DOCKETING WITH THIS COURT.

VI.[1]

WHETHER, AS APPLIED TO AIRMAN HOWARD, 18 U.S.C. § 922 IS UNCONSTITUTIONAL BECAUSE THE GOVERNMENT CANNOT DEMONSTRATE THAT BARRING HIS POSSESSION

[1] Assignments of Error (AOEs) VI and VII are raised pursuant to *United States v. Grostefon*, 12 M.J. 431 (C.M.A. 1982).

OF FIREARMS IS "CONSISTENT WITH THE NATION'S HISTORICAL TRADITION OF FIREARM REGULATION."

VII.

WHETHER AIRMAN HOWARD'S ASSAULT AND INSUBORDINATE CONDUCT CONVICTIONS ARE LEGALLY SUFFICIENT.

Statement of the Case

On 7 September and 24-28 October 2022, at Misawa Air Base (AB), Japan, a panel of officer and enlisted members sitting as a general court-martial found Airman (Amn) Brian D. Howard guilty, contrary to his pleas, of: (1) one specification of assault of a superior commissioned officer, in violation of Article 89, Uniform Code of Military Justice (UCMJ), 10 U.S.C. § 889 (2018)[2]; (2) one specification of willfully disobeying a superior commissioned officer, in violation of Article 90, UCMJ, 10 U.S.C. § 890 (2018); (3) one specification of insubordinate conduct toward a noncommissioned officer, in violation of Article 91, UCMJ, 10 U.S.C. § 891 (2018); and (4) three specifications of dereliction of duty (one negligent and two willful), in violation of Article 92, UCMJ, 10 U.S.C. § 892 (2018). (R. at 57, 858–59; Entry of Judgment (EOJ).) The panel members sentenced Amn Howard to 6 years' confinement, forfeiture of all pay and allowances, reduction to the grade of E-1, and a dishonorable discharge. (R. at 932; EOJ.) The convening authority took no action on the findings and the sentence. (Convening Authority Decision on Action.)

[2] All references to the punitive articles are provided by year. Unless noted otherwise, all references to the UCMJ and the Rules for Courts-Martial (R.C.M.) are to the versions in the *Manual for Courts-Martial, United States* (2019 ed.) [*MCM*].

On 9 April 2024, this Court remanded the case due to missing portions of the verbatim transcript and missing Preliminary Hearing Officer (PHO) exhibits. *United States v. Howard*, No. ACM 40478, 2024 CCA LEXIS 137 (A.F. Ct. Crim. App. 9 Apr. 2024) (unpublished).

Statement of Facts

Background

Amn Howard grew up with the Air Force. (Def. Ex. E at 1.) Both his parents were Airmen, and thus he lived the experience of the military child: moving to New Jersey, Lajes Field, Panama, and Germany. (*Id.* at 1–2.) He joined the Air Force later than most, after a career in medical services and patient care. (*Id.* at 2.) He was excited that his first assignment was overseas at Misawa AB, and that he was stationed with his friend from basic training and technical school, Senior Airman (SrA) DC. (*Id.*)

Yet Amn Howard experienced significant mental health issues while at Misawa AB. Several members of Amn Howard's unit brought their concerns about his mental health to CT, his squadron commander. (R. at 432–33.) Amn Howard's reported behavior, such as speaking to himself when nobody else was around, led CT to order two command-directed evaluations (CDEs). (R. at 433.)

Lt Col EG, a clinical psychologist then at Misawa AB, evaluated Amn Howard in early 2021. (*See* R. at 708, 723.) She explained that, for the military, Amn Howard's "grooming was not what [she] would've expected." (R. at 718.) When he arrived, "he's like jumping down the hallway, running and speeding in after me, and super excited, and super pleasant, and super happy, and talking very fast and

pressured, and so, there you see that obviously the pressured speech, the psychomotor agitation, and the high energy." (*Id.*) Lt Col EG said Amn Howard's demeanor "did not coincide with what you would expect" in a CDE, which was "not a happy situation." (*Id.*) He displayed a "flight of ideas," where he would lead the conversation in "different tangents" and require redirection. (R. at 719.) He even answered his cell phone at one point and proceeded to talk for ten minutes during the session, "[n]ot understanding that . . . wasn't appropriate." (*Id.*) Amn Howard was also getting limited sleep because he would have long conversations about religion with people from the United States at various times during the night. (*Id.*) She explained that he exhibited "hyperreligiosity," which is a form of delusional behavior. (R. at 720.)

Lt Col EG diagnosed Amn Howard with "bipolar disorder manic severe, with psychotic features," although she modified the diagnosis to the vaguer "unspecified" after consultation with other providers. (R. at 716.) Bipolar disorder does not always include psychotic features, but it did for Amn Howard. (R. at 721.) The manic state that could manifest as part of his condition was not "constant," but instead would "wax and wane" over time. (R. at 722.) Given this "pretty severe diagnosis," Lt Col EG had him see two other psychiatrists for their assessment because "we rarely want to do that just on our own." (R. at 723.) Both psychiatrists generally concurred with her findings. One of them, Dr. SF, provided further description of the features of mania he observed: a "pressured speech," where the patient would talk very rapidly and frequently over the other person talking in a conversation." (R. at

CERTIFICATE OF FILING AND SERVICE

I certify that the original and copies of the foregoing was sent via email to the Court and served on the Government Trial and Appellate Operations Division on 29 September 2024.

[redacted]

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